

PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR AUGUST 14, 2026 AT 8:30 A.M.

16. S-CV-0054854 DARBEE, JONATHAN v. SUNRUN

NOTE: If oral argument is requested in this case, it shall be heard on AUGUST 18, 2026 AT 2:30 P.M. in DEPARTMENT 1.

Defendant Sedgwick Claims Management Services, Inc.'s Motion for Terminating Sanctions and/or Dismissal

The motion is granted.

Defendant's request seeks several forms of relief, including a request for dismissal pursuant to Code of Civil Procedure section 583.150. This section recognizes the court's inherent authority to dismiss an action. (*Lyons v. Wickhorst* (1986) 42 Cal.3d 911, 915.) Such dismissals, however, act much like terminating sanctions and should only be considered in extreme situations where the conduct is clear, deliberate, and there is no lesser alternative to remedy the situation. (*Id.* at p. 917.)

Defendant brought a successful motion to compel arbitration on July 17, 2025 and this matter was stayed pending the parties' participation in mediation. Plaintiff has not taken any steps to initiate arbitration since the order entered more than a year ago. An OSC regarding the status of mediation was heard on March 16, 2026 where plaintiff failed to appear. Plaintiff has also failed to file any opposition to the current motion. The court finds plaintiff's failure to participate in arbitration; failure to appear at the OSC hearing; and failure to respond to the current motion is clear and deliberate conduct where plaintiff has failed to comply with the court's orders and failed to prosecute the current action. The court further finds that the circumstances are extreme with no lesser alternative remedy available other than dismissal. For the foregoing reasons, the motion is granted.

The court dismisses the current action pursuant to Code of Civil Procedure section 583.150.

The OSC re status of case is dropped from the calendar.

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